

VCU319118 C.R. a Minor vs. Central Valley Christian School Society et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-24

Motion: Motion for Attorneys' Fees and Costs re: Enforcement of the Attorney Fee Award

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Re: C.R. a Minor vs. Central Valley Christian School Society et al

Case No.: VCU319118

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Attorneys' Fees and Costs re: Enforcement of the Attorney Fee Award

Tentative Ruling: To grant the motion and award \$230 in attorneys' and \$212 in costs.

Facts

On October 9, 2025, this Court granted Defendants Central Valley Christian School (CVC) and Blake Hiemstra's ("Defendants") motion for fees and costs, awarding \$16,358 in fees and \$64.87 in costs.

The proposed order granting the motion for fees lodged with the Court on September 12, 2025 did not reflect the Court's adopted tentative ruling and was not signed by the Court.

Instead, the proposed order granting the motion for fees was lodged July 14, 2026 and signed the same day, as it reflected the Court's ruling on October 9, 2025.

Thereafter, on July 28, 2026, an abstract of judgment was issued, with the entry of judgment date noted as July 14, 2026. (Abstract ¶18.a.)

On August 12, 2026, Defendants filed a memorandum of costs seeking \$347.06 in costs consisting of \$100 in filing and motion fees, \$135.06 for electronic filing or service and \$112 for recording of the abstract of judgment.

Further, on August 12, 2026, Defendants filed this motion for fees and costs pursuant to Code of Civil Procedure section 685.040, in the total amount of \$9,032.00 in attorneys' fees and \$347.06 in costs.

Defendants indicate 39.2 hours incurred between November 10, 2025 and the filing of this motion August 12, 2026.

In opposition, Plaintiff argues the costs are listed on an incorrect form, that there is no declaration sufficient under Code of Civil Procedure section 685.080(b), that the hours incurred are duplicative, clerical or unnecessary to the judgment, including the 13.8 hours incurred preparing this motion.

Authority and Analysis

Code of Civil Procedure section 685.040 states:

"The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

York v. Strong (2015) 234 Cal.App.4th 1471, 1477, citing to Ketchum v. Moses 24 Cal.4th 1122 noted:

"...our Supreme Court previously ruled in Ketchum that attorney fees incurred in an effort to enforce a fee judgment obtained under the anti-SLAPP law do qualify as recoverable costs under section 685.040: 'Ketchum also asserts that Code of Civil Procedure section 685.040 precludes an award of 'collection' fees. He is incorrect. The statute provides that attorney fees incurred in enforcement efforts 'are not included in costs collectible under this title unless otherwise provided by law.' Under its provisions, a litigant entitled to costs for successfully enforcing a judgment is entitled to costs, but not attorney fees unless there is some other legal basis for such an award. Because Code of Civil Procedure section 425.16, subdivision (c) provides a legal right to attorney fees, they are a permissible item of costs.' (Ketchum, supra, 24 Cal.4th at p. 1141, fn. 6, first italics added.)"

Further, York noted:

"Moreover, the Supreme Court recently reiterated the same conclusion when it relied on the Ketchum footnote in Conservatorship of McQueen (2014) 59 Cal.4th 602, 613–614 [174 Cal. Rptr. 3d 55, 328 P.3d 46]: '[W]e adhere to the reading we gave the statute in Ketchum v. Moses, supra, 24 Cal.4th 1122. ... [W]hen a fee-shifting statute provides the substantive authority for an award of attorney fees, any such fees incurred in enforcement of the judgment are within the scope of section 685.040.'"

As such, the Court agrees that Defendants are entitled to fees and costs incurred with respect to collection of the fees awarded as to the special motion to strike.

Code of Civil Procedure section 685.080 requires the following:

"(a) The judgment creditor may claim costs authorized by Section 685.040 by noticed motion. The motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred. The costs claimed under this section may include, but are not limited to, costs that may be claimed under Section 685.070 and costs incurred but not approved by the court or referee in a proceeding under Chapter 6 (commencing with Section 708.010) of Division 2.

(b) The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied. The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail.

(c) The court shall make an order allowing or disallowing the costs to the extent justified under the circumstances of the case."

Here, the motion is timely, but the Court agrees the initial declaration by Thies fails to attest that "...that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied." The declaration, however, does sufficiently described the itemized billing entries sufficiently.

As to the hours incurred, the Court's plain language interpretation of this section is that there was no entry of judgment as to fees until, at the very earliest, July 14, 2026 when this Court signed the corrected order granting the motion reflecting the Court's October 9, 2025 ruling.

In assessing attorney fees under Code of Civil Procedure section 425.16, subdivision (c)(1), the court begins with "a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.'" (Ketchum v. Moses 24 Cal.4th 1122, 1131-1132, citation omitted.)

"Under this method, a court assesses attorney fees by first determining the time spent and the reasonable hourly compensation of each attorney. [Citation.] The court next determines whether that lodestar figure should be adjusted based on various relevant factors [citation], including a plaintiff's limited success in the litigation [citations]." (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342.)

Therefore, the Court starts by striking the hours incurred between November 10, 2025 and July 13, 2026, as no order granting the motion for fees had been entered and no judgment can be said to have been entered or subject to enforcement.

In examining, therefore, the hours incurred between July 14, 2026 and the filing of this motion, the Court breaks down the hours into three categories:

First, the Court notes 3 hours total between July 14, 2026 and July 29, 2026 by two attorneys as to research and preparation of the abstract of judgment, the recording thereof and review of the Court's order (prepared by Defendants) granting the motion. The Court will strike the .6 hours incurred by Walker as duplicative and reduce the remaining 2.4 hours incurred by Thies to 1 (-.6 as to Walker; -1.4 as to Thies.) This reflects, in the Court's opinion, reasonable time to review an order prepared by Defendants and prepare the abstract of judgment.

Second, the Court notes .3 incurred by Thies as to an email for which the remainder of the content is redacted. The Court will strike this entry. (-.3 as to Thies.)

Third, the Court notes the remaining 13.5 hours incurred by both attorneys solely as to this attorney fee motion to collect what is now 1 hour spent on enforcement of the judgment. In other words, the motion for fees incurred enforcing the judgment consists nearly entirely of its own filing.

The Court notes 5.2 hours incurred by Thies on July 30, 2026 to plan and prepare for the motion, to draft and revise the motion and draft and revise the declaration in support thereof. The Court will reduce these entries to .5 hour total (-4.7 as to

Thies.)

Next, the Court notes 1.2 hours on July 31, 2026 as to the exhibit list and proposed order. The Court will reduce these entries to .5 hours total. (-.7 as to Thies.)

The remaining 7.1 hours incurred between August 3, 2026 and August 12, 2026 involve further drafting and revising of exhibits, the motion, the memorandum of costs and further review thereof. The Court starts by striking the 1.2 hours incurred by Walker on August 6 (-1.2 as to Walker) and reduces the remaining 5.9 hours to 0. (-5.9 as to Thies.)

The Court, therefore is inclined to award 1 hour as to the fee motion, the same time spent collecting the judgment, reduced by the Court above.

The rate of \$230 is consistent with this Court's prior attorney fee award.

Therefore, the Court awards \$230 in attorneys fees as to enforcement of the attorney fee award.

The Court agrees that no award of fees may be ordered against Plaintiff's counsel.

Costs

The memorandum of costs, filed on MC-010, seeks \$347.06 in costs.

However, Plaintiff argues this is insufficient under Code of Civil Procedure section 685.070, which requires the attestation under subsection (e), and which is found on MC-012, stating "The memorandum of costs shall contain the following statement: "The fees sought under this memorandum may be disallowed by a court upon a motion to tax filed by the debtor notwithstanding the fees having been included in the writ of execution."

The Court, then, will evaluate the costs pursuant to post-judgment MC-012 form.

The \$60 filing fee and \$40 fee for issuance the abstract of judgment appear properly recoverable as "reasonable and necessary costs" incurred in enforcing the judgment. Likewise, the \$112 incurred as to recording of the judgment is recoverable as to 1.a.(1), (2) (MC-012.)

However, fees for electronic filing, in the amount of \$135.06 are recoverable expressly via the MC-012 and Defendants have identified no statute permitting such recovery. Th Court will not award the \$135.06.

Therefore, the Court will award \$212 in costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.